

be recovered in a single action. (*Id.* at 963.) The *Anderson* court reasoned: “The punitive damages were based on conduct underlying the fraud/CLRA causes of action and took place before the sale. The civil penalty was based on defendant’s post-sale failure to comply with its Song-Beverly Act obligations to replace the vehicle or make restitution when reasonable attempts to repair had failed.” (*Id.*) As discussed above, Plaintiff’s fraud claim is not subject to demurrer. Accordingly, the Court denies GM’s motion to strike the prayer for punitive damages.

2.

CASE #	CASE NAME	HEARING NAME
CVME2405983	MIRANDA VS GENERAL MOTORS	MOTION TO STRIKE COMPLAINT ON 1ST AMENDED COMPLAINT FOR BREACH OF CONTRACT/WARRANTY OF MIRANDA

Tentative Ruling: See Tentative for Demurrer

3.

CASE #	CASE NAME	HEARING NAME
CVME2503835	THE TRIM CLINICS VS LOS ANGELES INVESTMENTS	MOTION TO COMPEL PRODUCTION OF DOCUMENTS BY THE TRIM CLINICS

Tentative Ruling: Grant

Defendant to identify to Plaintiff which of the documents produced are responsive to each of the RFPs.

Sanctions are awarded in the reduced but reasonable amount of \$410 (\$350/hour x 1 hour + \$60 filing fee).

This is a breach of lease action. On April 10, 2025, Plaintiff The Trim Clinics, LLC (“Plaintiff”), along with individual Plaintiffs Lelani Vidal, and Darryl Walker filed a Complaint against Defendant Los Angeles Investments, LLC (“Defendant”) for: (1) breach of contract; (2) breach of the covenant of good faith and fair dealing; (3) breach of the implied covenant of quiet enjoyment; (4) negligent misrepresentation; and (5) rescission of lease. In the Complaint, Plaintiff alleges that it operates as a weight loss and body contouring clinic, and on April 17, 2024, it entered a lease of the property located at 31285 Temecula Parkway, Suite C8-260, Temecula, California